

Line 11

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA**

DISH WIRELESS L.L.C.,

Petitioner,

v.

ADVANCED WIRELESS & LOGISTICS,

Respondent.

Case No. 24CV454855

**ORDER GRANTING MOTION FOR
ATTORNEYS' FEES**

Petitioner DISH Wireless L.L.C.'s motion for \$8,808.08 in attorneys' fees pursuant to Civil Code section 8488 came on for hearing before the Court on September 4, 2025. Pursuant to California Rule of Court 3.1308, the Court issued its tentative ruling on September 3, 2025, 2025.

In an action to release property from a mechanics lien, Civil Code section 8488 (c) provides that "[t]he prevailing party is entitled to reasonable attorney's fees." Here, DISH obtained an order releasing property from a mechanics lien on May 1, 2025. DISH is plainly the prevailing party. DISH now seeks \$8080.08 in attorneys' fees.

A notice of motion with this hearing date and time was served on Respondent's agent for service of process by U.S. mail on May 8, 2025. Defendant failed to file an opposition. "[T]he failure to file an opposition creates an inference that the motion [] is meritorious." (*Sexton v. Super Ct.* (1997) 58 Cal.App.4th 1403, 1410.)

This case was leanly staffed, and the chart of charges reflect an effort to efficiently use resources and leverage work in related cases. Thus, the Court finds the hours billed reasonable. The

hourly rates charged are also reasonable for this area, case type, and level of attorney experience.

Petitioner's motion for \$8,808.08 in attorneys' fees pursuant to Civil Code section 8488 is accordingly GRANTED.

IT IS SO ORDERED.

Date: _____

Hon. Evette D. Pennypacker
Santa Clara Superior Court Judge

Line 12

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA**

BRANDI DAVIS and DELICA AMEMOWOTO,
individually and as Heirs and Successors-in-
Interest to PEGGY DAVIS, Deceased,

Plaintiffs,

v.

CIRBY HOLDINGS, LLC dba MOUNTAIN VIEW
HEALTHCARE CENTER; and DOES 1-50,

Defendants.

Case No. 25CV460115

**ORDER GRANTING DEFENDANT'S
PETITION TO COMPEL ARBITRATION**

Cirby Holdings, LLC dba Mountain View Healthcare Center's petition to compel arbitration first came on for hearing before the Court on August 5, 2025. The Court issued a tentative ruling ordering the following:

1. The hearing on Mountain View's petition to compel arbitration is continued to September 4, 2025 at 9 a.m. in Department 6;
2. On or before August 22, 2025 Mountain View is ordered to submit a further sworn statement describing the process by which the Arbitration Agreement was electronically signed; and
3. Plaintiffs may submit a response to Mountain View's further statement on or before August 29, 2025.
4. The parties' further statements shall be filed, served, and emailed to